

Court No. - 21

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

On prayer made by Shri Nipendra Mishra, learned counsel for the respondent no. 1 and 2, the case is directed to be put up as fresh on 10.12.2012 so as to enable him to obtain instructions in the matter.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by Shri B.C. Rai, learned counsel for the petitioner and Shri Nripendra Mishra, learned counsel for the respondent nos. 1 and 2 and keeping in view of the provisions contained in Clause 3.4 of the U.P. Electricity Supply Code 2005 and also keeping in view the decision of this Court in Civil Misc. Writ Petition No. 2309 of 2009, M/s Kesarwani Sheetalaya & others Vs. Purvanchal Vidyut Vitran Nigam Ltd. and others connected with Civil Misc. Writ Petition No. 32927 of 2003, M/s Shiv Flour and Rice Mills Vs. State of U.P. and others, decided on 9.10.2009, it is provided that till the next date fixed in the matter, the respondent nos. 1 and 2 will not connect the supply in respect of the respondent no. 3 to the Independent Feeder of the petitioner.

Order Date :- 7.11.2012

R

Court No. - 21

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

Pursuant to the order dated 7.11.2012, the case has been put up today as a fresh case.

Issue notice pending admission.

Notice on behalf of the Respondent Nos. 1 and 2 has been accepted by Sri Nripendra Mishra, learned counsel for the said Respondents.

Notice on behalf of the Respondent No. 3 has been accepted by Sri Ranjeet Saxena, learned counsel for the said Respondent.

Therefore, no notice need be sent to the respondents.

Stay Vacation Application along with Counter affidavit on behalf of the Respondent No. 3 has already been filed.

Sri Nripendra Mishra, learned counsel for the Respondent Nos. 1 and 2 prays for and is granted time up to 21st December, 2012 to file Counter Affidavit on behalf of the said Respondents.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 3rd January, 2013.

The case will be listed amongst the cases listed at the top of the Cause List of the said date.

Interim order dated 7.11.2012 will continue to remain operative till the next date fixed in the matter.

Order Date :- 10.12.2012

A. Pt. Singh

Court No. - 21

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra, Ranjit Saxena

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Zaki Ullah Khan, J.

Pursuant to the order dated 10th December, 2012, the case is listed today.

Sri Dinesh Rai, learned counsel for the petitioner states that copy of the Counter Affidavit on behalf of the respondent Nos. 1 and 2 has been received by him. The said Counter Affidavit is not on record.

Office is directed to trace the same and place it on record.

Rejoinder Affidavit in reply to the aforesaid Counter Affidavit as well as in reply to the Counter Affidavit already filed on behalf of the respondent no. 3, may be filed by the next date fixed in the matter.

List this case on 17th January, 2013.

Interim order dated 07.11.2012 will continue to remain operative till the next date fixed in the matter.

Order Date :- 3.1.2013

v.k.updh.

Court No. - 21

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra, Ranjit Saxena

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Zaki Ullah Khan, J.

Case called out.

List this case, if possible, on 29.1.2013 before another Bench of which one of us (S.P. Mehrotra, J.) is not a member after obtaining nomination from the Hon'ble The Acting Chief Justice.

Interim Order, as contained in the Order dated 7.11.2012, will continue to remain in operation till the next date of listing.

Order Date :- 17.1.2013

AK

Court No. - 37

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra, Ranjit Saxena

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhyay, J.

Learned counsel for the petitioner states that the rejoinder affidavit has been filed on 11.1.2013 but the same is not on record.

Office may trace it out and place the same on record.

Put up tomorrow.

Interim order to continue till then.

Order Date :- 29.1.2013

VPC

Court No. - 37

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra, Ranjit Saxena, S.C.

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhyay, J.

Put up on 1.2.2013.

Sri Nripendra Mishra, learned counsel appearing for the respondent Power Corporation states that the counter affidavit was filed on 4.1.2013 in the Registry but the same is not on record.

Office may trace it out and place the same on record in the meantime.

Order Date :- 30.1.2013

VPC

Court No. - 37

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra, Ranjit Saxena, S.C.

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhya, J.

As jointly prayed, put up on 5.2.2013.

The interim order already granted shall continue till then.

Order Date :- 1.2.2013

LA/-

Court No. - 9

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra,Ranjit Saxena,S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

As prayed, list on 28.2.2013.

Interim order to continue till then.

Order Date :- 21.2.2013

VPC

Court No. - 9

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra, Ranjit Saxena, S.C.

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhyay, J.

List on 7.3.2013.

Interim order to continue till then.

Order Date :- 28.2.2013

VPC

Court No. - 9

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra,Ranjit Saxena,S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

A request has been made by the learned counsel for the petitioner for adjournment.

As prayed, put up on Tuesday i.e. 12/3/2013, in the additional cause list.

Interim order granted earlier to continue till then.

Order Date :- 7.3.2013

SB

Court No. - 9

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra,Ranjit Saxena,S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Put up tomorrow.

Order Date :- 12.3.2013

SB

Judgement Reserved on 13.3.2013

Judgement Delivered on 17.4.2013

Case :- WRIT - C No. - 58652 of 2012

Petitioner :- M/S Shri Parasnath Alloys (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Dinesh Rai

Respondent Counsel :- Nripendra Mishra, Ranjit Saxena, S.C.

Hon'ble Ashok Bhushan, J.

Hon'ble Abhinava Upadhyay, J.

(Delivered by Hon'ble Abhinava Upadhyay, J)

Heard Sri B.C.Rai and Sri Dinesh Rai, learned counsel for the petitioner, Sri Nripendra Mishra, learned counsel appearing for respondents No.1 and 2 and Sri Ranjit Saxena, learned counsel appearing on behalf of respondent No.3.

By means of this writ petition, the petitioner has challenged the order dated 5.9.2012 for release of electric supply from 33 KV Independent Feeder to respondent no.3 and has further sought a writ of mandamus restraining the Purvaanchal Vidyut Vitran Nigam Ltd. from releasing electricity connection in favour of respondent no.3 with the following prayers:

- (I) issue a writ, or or direction in the nature of certiorari calling for the records and to quash the order dated 5.9.2012 in so far it direct to release electricity supply from 33 KV independent feeder known as Shree Sidhballi Steels Limited independent Feeder and Bay constructed at the cost of the petitioner and three other consumers (Annexure No. 13 to the writ petition) in ontradistinction to Clause 3.4 of Supply Code, 2005;
- (II) issue a writ, order or direction in the nature of writ of mandamus restraining the PVVNL from releasing electricity connection of respondent No.3 from 33KV independent Feeder and Bay constructed at the cost of the petitioner and three other similarly situated consumers;
- (III) issue such other and further writ, or or directions which this Hon'ble Court may deem fit and proper in the circumstances of the case; and;

(IV) to award costs throughout to the petitioner Company.

The petitioner, for establishing an induction furnace and Rolling Mill in the name and style of M/s Parasnath Alloys (Pvt.) Ltd., applied for sanction of 3200 KVA electric connection. For running of arc and induction furnace, the electricity is to be supplied through an independent feeder as per the provisions of clause 3.4 of the Electricity Supply Code, 2005 framed under section 50 of the Electricity Act, 2003.

According to the petitioner, one M/s Shree Siddhali Steels Ltd. for the same process has applied for 5500 KVA load sanction and agreed to bear the cost of establishing an independent feeder for the said purpose. It is submitted that one M/s Suresh Furnace Pvt. Ltd. and M/s V.V.A. Steels Pvt. Ltd. also applied for sanction of supply of 5600 KVA and 3200 KVA respectively. On 15.7.2009, the Divisional Engineer submitted a report that for supply of electricity for same process furnace and rolling mills can be provided through an independent feeder by providing a 'bay' on a 4 poles structure, the cost of which could be minimized by sharing of consumers of the same process. It is submitted that M/s Siddhali steel Ltd. were sanctioned load of 5500 KVA on 2.4.2009 upon the condition that they will bear the entire cost of 33 KV independent feeder to be known as Siddhabali feeder. One M/s Suresh Furnace Pvt. Ltd. was sanctioned 5600 KVA load on 11.6.2009. On 15.9.09, the petitioner was sanctioned 3200 KVA load through the same independent feeder known as Siddhali feeder. On 12.6.2009 M/s V.V.A. Steel Pvt. Ltd. was also sanctioned load of 3200 KVA from the said Independent feeder through a bay on 4 poles structure. The petitioner submits that on the basis of the report of the Divisional Engineer dated 15.7.09, the independent feeder was established upon sharing of the cost by M/s Shree Siddh Bali Steel Ltdf , M/s Suresh Furnace Pvt. Ltd., the petitioner and M/s V.V.A. Steel Pvt. Ltd.

The claim of the petitioner is that by virtue of sharing the cost of the Sidhabali independent feeder and its bay, no other tapping can be permitted in view of Clause 3.4 of the Electricity Code without the consent of the original

consumer. The authority below by sanctioning supply with load of 2700 KVA to M/s Kumar Casting Pvt. Ltd., respondent No.3, have acted in violation of statutory provisions of Para 3.4 of the Electricity Supply Code, 2005. It is claimed that for running furnace and rolling mill which requires load upto 1000 KVA and above, the electric supply has to be provided through an independent feeder. However, supply to other such consumer is permissible only upon the condition as enumerated under Para 3.4 clause (d) (i), (ii), (iii) and (iv). According to the learned counsel for the petitioner, since no consent was obtained by the prospective consumer, i.e., respondent no.3, sub-clause (ii) of clause (d) of Para 3.4 of the Electricity Supply Code, 2005 has been violated and the order dated 5.9.2012 sanctioning the electric supply to M/s Kumar Casting Pvt. Ltd, respondent no.3 deserves to be quashed.

Learned counsel for the petitioner has relied upon a decision of Division Bench of this Court dated 9.10.2009 passed in Civil Misc. Writ Petition No.2309 of 2009- M/s Kesarwani Sheetalaya & others Vs. Purvanchal Vidyut Vitran Nigam Ltd. And others and Civil Misc. Writ Petition No.32927 of 2003- M/s Shiv Flour and Rice Mills Vs. State of U.P.& others . This Court in the aforesaid cases while deriving distinction between the "service line" as defined under Para 2.2.(bb) and "independent feeder" defined under Para 2.2.(ff) of the Electricity Supply Code, 2005 held that use of service line of consumer by licensee as enumerated under Para 4.29 and supply through independent feeder under Para 3.4 of the Supply Code , 2005 are two different concepts and went on to hold that without fulfilling the conditions enumerated under Para 3.4 sub-clause (d), the licensee cannot allow tapping of independent feeder for supplying power to other consumer for running arc/induction furnace, rolling mill and steel plant etc. The facts in the aforesaid case was one M/s Phoolpur Sahkari Cold Storage, Sahson applied for connection of 132 KV through an independent feeder. The said cold storage agreed to bear the cost of independent feeder which was then commissioned. Thereafter the petitioners in that case applied for connection from the said independent feeder. The administrator of Phoolpur Sahkari Cold Storage gave its no objection for connecting the petitioner subject to proportioned bearing of the cost . The petitioner therein deposited certain amount. Thereafter other petitioner also applied and it were also given no objection by the original

consumer Phoolpur Sahkari Cold Storage. Upon an application for sanction of load made by Respondent No.4 from the same independent feeder, certain clarifications were sought by the authorities of the Nigam. The Executive Engineer wrote to General Manager informing that supply to respondent no.4 would not be possible in view of Para 3.4.(d) of the U.P. Electricity Supply Code, 2005. In the meantime, respondent no.4 also moved an application before the Minister of Energy requesting that a direction be issued for connecting his line with the aforesaid independent feeder. The said letter was endorsed by the Hon'ble Minister directing connection as requested and finally respondent was connected. The said action was challenged by the petitioners. The defence taken by respondent no.4 was that the said independent feeder is no longer an independent feeder as the petitioners No.1 and 2 and others have also been connected. This Court rejecting the contention of respondent no.4 held that the feeder continued to be independent feeder as the petitioners No.1 and 2 had taken consent from the original consumer and had shared certain cost of the feeder and set aside the order of connecting respondent no.4 through that independent feeder.

On the strength of the aforesaid decision, learned counsel for the petitioner submits that since the petitioner has shared the cost of the independent feeder, no loading can be sanctioned from that feeder in favour of respondent No.3 and sanction being in violation of Para 3.4 (d) has to be set aside.

Sri Nripendra Misra , learned counsel appearing for the Vidyut Nigam-respondents No.2 and 3 have filed counter affidavit on their behalf denying the claim of the petitioner. It has been stated that a group of consumers having similar process on the same or contiguous premises can be given electricity supply from the same feeder known as independent feeder emanating from 132 KV sub stations. It is alleged that the sanction of electricity supply to respondent no.3 is after considering the feasibility report ensuring that the quality of supply to the existing consumers is not affected. The competent authority after ensuring that all formalities have been complied with, sanctioned a load of 2700 KW from 300 K.V. line from the independent

feeder. In para 15 of the counter affidavit, it has been asserted by respondent no.1 and 2 relying upon Para 3.4 (d)(ii) of the U.P. Electricity Supply Code, 2005 that the petitioner is not the original consumer and , therefore, no consent is required . It further states that ultimately the Paschim Vidyut Vitran Nigam Ltd. is the owner of the independent feeder, the consent from the original consumer is only with regard to the sharing of the cost. The independent feeder was initially constructed for M/s Siddhdbali Steels Ltd. And it is the original consumer The load was sanctioned first on the request of M./s Siddhdbali Steel vide order dated 2.4.2009. The petitioner's load was sanctioned subsequently on 15.9.009 and was allowed tapping from the Siddhdbali independent feeder. No objection has been raised by the original owner, i.e., M/s Siddhdbali Steels Ltd. The petitioner cannot raise any grievance with regard to further supply of power to the respondent No.3 as there is no violation of Para 3.4 (d)(ii) of the Supply Code.

Sri Ranjeet Saxena, learned counsel appearing for M/s Kumar Casting Pvt. Ltd, respondent no.3 submits that respondent no.3 and the petitioner are placed at the equal status applying similar process and both have been allowed electricity supply by tapping the Sidhdbali independent feeder. According to him, the definition of independent feeder in Para 2.2(ff) of the Electricity Supply Code is that in a case of 33 KV supply voltage shall mean a feeder emanating from 132 KV or higher voltage sub station, for supplying the electricity to a single consumer, or a group of consumers having similar process, on the same or contiguous premises . According to Sri Saxena in all the communications with the petitioner as well as with respondent no.3, the independent feeder has been termed as Sidhdbali independent feeder of M/s Siddhdbali Steels Ltd. which is the original consumer. The petitioner like respondent no.3 have paid the amount for sharing the cost of laying the line from the bay. It is further alleged that no proof has been brought on board by the petitioner to indicate that they had taken any consent from M/s Shree Siddhdbali Steels Ltd. who are the original consumer. It is further alleged that the petitioner is also getting electricity through tapping as respondent no.3 is getting. No objection has been raised by the original consumer M/s Siddhdbali Steels Ltd. Therefore, the petitioner have no locus standi challenging the supply to the respondent No.3. It is further alleged that as per own showing

of the petitioner in the writ petition, M/s Sidhdhali Steels Ltd. was sanctioned load on 2.4.2009 upon the condition that M/s Sidhdhali would bear the entire cost of the independent feeder. It is pointed out that M/s Sidhdhali, the original consumer for their independent feeder have paid the cost of Rs.1,25,20,284/- along with supervision charges of 15% on 15.10.2009. All the documents filed would indicate that the feeder was constructed for M/s Sidhdhali Steels Ltd. and M/s Sidhdhali is the original consumer and not the petitioner. The petitioner as well as respondent no.3 have got electricity connection from Sidhabali feeder through tapping. According to the learned counsel for the respondent no.3, section 43 of the Electricity Supply Act, 2003 casts an obligation upon the licensee to give supply of electricity within one month of the receipt of the application requiring such supply. It is contended that the load has been sanctioned on 5.9.2012 after complying with all the formalities and after obtaining the feasibility report by the competent authorities which has noted that by supplying the electricity to the respondent no.3, the quality of electricity supply to other consumer would not be adversely affected in any manner. It is asserted that the petitioner has no locus standi to challenge the sanctioning of electricity supply to respondent no.3 which has already invested huge amount of money for establishing the unit and is incurring huge loss on daily basis on account of interim order granted by this Court and has prayed that the interim order be vacated and the writ petition be dismissed.

Sri Saxena has relied upon **(2011) 12 Supreme Court Cases 314- Chandu Khamaru Vs. Nayan Malik and others** to assert that the respondent no.4 has a statutory right to apply and obtain electricity from the Nigam.

Paras 11 and 12 are quoted below:

"11. We may now apply the aforesaid provisions of the Electricity Act, 2003 to the facts of the present case. The appellant has a statutory right to apply for and obtain the supply of electricity from the distribution licensee and the distribution licensee has a corresponding statutory obligation to supply electricity to the appellant. Respondents 1 to 3 also do not object to the supply of electricity by the distribution licensee to the appellant as it will be clear from the averments made in Writ Petition No.345 of 2005 filed by them before the High Court but they object to the line for supply of electricity being drawn through the passage in Dag Nos. 406, 407 and 409 which they claim to be theirs. The further grievance of Respondents 1, 2 and 3 is that they were not made parties in the earlier Writ Petition No.18220 of 2004 filed by the appellant in which

the High Court directed the distribution licensee to effect supply of electricity to the house of the appellant."

"12. The case of the appellant, on the other hand, is that this passage is not a private passage of Respondents 1 to 3 but is a common passage and therefore an electric line can be drawn through this common passage. This dispute will have to be resolved in Civil Suit No.83 of 2004 pending in the Court of the Civil Judge (Junior Division), Howrah, or in any other suit, but pending resolution of this dispute between the parties, the appellant cannot be denied the supply of electricity to his house."

Sri Saxena submits that similar proposition has been laid down in **JT 2005 (7) SC 258- Punjab State Electricity Board Ltd. v. Zora Singh and others**, para 31 whereof is quoted below:

"What would be a reasonable period for supply of electrical energy to different categories of consumers has been specified in the administrative circulars issued as well as the regulations made by the Board itself. We find from the records that the persons had applied for grant of electrical connection as far back in 1986 and the Board had asked them to deposit the security amount only sometime in the year 1999. The complaints were filed as despite expiry of the prescribed period, no electrical connection was given. If the Board was serious to implement its own circular, it was obligatory on its part to draw a blue print so as to enable it to make supply of electrical energy to the consumers in order of seniority of application upon procuring the requisite materials therefor. It failed and/or neglected to do so. It was also under an obligation to notify the persons concerned stating the reasons why such supply could not be made during the period specified in the administrative circular and/regulations. The Board does not say that the said requirements were complied with."

Before proceeding further, it would be useful to note the provisions of law as applicable in the present case.

For ready reference and proper adjudication, the relevant provisions of the statute, namely sections 43 and 50 of the Electricity Act, 2003 and clause 2.2(ff) and 3.4 of Electricity Supply Code, 2005 are quoted herein below:

43. Duty to supply on request-(1) Save as otherwise provided in this Act, every distribution] licensee, shall, on an application by the owner or occupier of any premises, give supply of electricity to such

premises, within one month after receipt of the application requiring such supply :

Provided that where such supply requires extension of distribution mains, or commissioning of new sub-stations, the distribution licensee shall supply the electricity to such premises immediately after such extension or commissioning or within such period as may be specified by the commissioning or within such period as may be specified by the Appropriate Commission:

Provided further that in case of a village or hamlet or area wherein no provision for supply of electricity exists, the Appropriate Commission may extend the said period as it may consider necessary for electrification of such village or hamlet or area.

[Explanation.- For the purposes of this sub-section, "application" means the application complete in all respects in the appropriate form, as required by the distribution licensee, along with documents showing payment of necessary charges and other compliances:]

(2) It shall be the duty of every distribution licensee to provide, if required, electric plant or electric line for giving electric supply to the premises specified in sub-section (1) :

Provided that no person shall be entitled to demand, or to continue to receive, from a licensee a supply of electricity for any premises having a separate supply unless he has agreed with the licensee to pay to him such price as determined by the Appropriate Commission .

(3) If a distribution licensee fails to supply the electricity within the period specified in sub-section (1), he shall be liable to a penalty which may extend to one thousand rupees for each day of default.

50. The Electricity Supply Code.- The State Commission shall specify an Electricity Supply Code to provide for recovery of electricity charges, intervals for billing of electricity charges disconnection of supply of electricity for non-payment thereof; restoration of supply of electricity; tampering, distress or damage to electrical plant, electric lines or meter, entry of distribution licensee or any person acting on his behalf for disconnecting supply and removing the meter; entry for replacing, altering or maintaining electric lines or electrical plant or meter and such other matters.

Section 2.2(ff) ["Independent feeder" in case of 11 KV supply voltage shall mean a feeder emanating from 33 KV or higher voltage sub-station, and in case 33 KV supply voltage shall mean a feeder emanating from 132 KV or higher voltage sub-station, for supplying electricity to a single consumer, or a group of consumers having similar process, on the same or contiguous premises.]

3.4 Supply through Independent feeders.- (a) Load for Arc/Induction furnaces, Rolling Mills, Re-rolling Mills and Mini steel plants, or 1000 KVA and above, shall be released only through an independent feeder and all necessary charges including the feeder

cost shall be paid by the consumer.

(b)[In other cases including townships/complexes, domestic or non-domestic or institutions, the supply may be given at independent feeder for load above 500 KVA, including those industries mentioned in clause 3.4(a) above but having load less than 1000 KVA, at the request of the consumer/applicant, if he is willing to bear all applicable charges, subject to technical feasibility and availability of bay/corridor at the sub-station.]

[Provided that for releasing the supply to consumer/applicant on independent feeder, having load below 500 KVA, it shall depend on nature and purpose of supply such as emergency services, and such other reasons where continuity of supply is required by consumers, if the licensee so determines, the supply can be released depending on system constraints, technical feasibility, cost parameters as well as safeguarding the provisions of duty of supply on request as per Act.]

(c)[xxx]

(d) The licensee shall allow tapping of feeders supplying Arc/Induction furnishes, Rolling Mills, Re-rolling Mills and Mini Steel Plants, with either of these plants, and this shall not be construed as change in process. The tapping of independent feeder shall be permitted by the licensee to other connection having a similar process subject to the following conditions,

(i) Construction of separate feeder from the sub-station is not possible on account of non-availability of corridor, right of way and bay as the respective sub-station.

(ii) Consent of original consumer has been obtained by prospective consumer for cost sharing of common portion of feeder with the prospective consumer.

(iii) Quality of supply is not likely to be affected and if technically feasible.

(iv) The outdoor metering at the tapping point and the additional cost due to changes in system shall be done at the cost of prospective consumer. However, the cost credit due to removal of the existing system shall not be given to the consumer.

(v) xxxxxxxx

Whereas section 43 of the Electricity Supply Act casts an obligation upon the electric distribution licensee to provide electricity to the consumer. Section 50 of the Act mandates framing of the Electricity Supply Code. The Code enlists the obligation of the licensee and consumer vis-a-vis each other and specifies the set of practices to provide efficient, cost effective and consumer friendly service to the consumers.

According to the Code electricity supply to heavy consumers are to be made through a "feeder" which according to Para 2 (cc) means a 'High Tension'(6.6. KV/11 KV/33KV) or 'Extra High Tension' (60 KV/132 KV/220 KV), distributor, emanating from a sub-station to which a distribution sub-station or HT or EHT consumers are connected. For specified heavy consumers such as Arc/ Induction Furnaces, Rolling Mills, Re Rolling Mills and mini steel plants requiring a load of 1000 KV or above, supply is to be made through an 'independent feeder'. According to the definition in Para 2.2 (ff), it means a feeder to supply electricity to a single consumer or a group of consumers having similar plants or process on the same or contiguous premises, emanating or originating from a 132 KV or higher voltage electric sub-station.

The dispute in the present case revolves around the question as to whether electric supply can be provided to respondent no.3 through such an 'Independent Feeder' known as Siddhballi feeder without the express consent of the petitioner and whether the petitioner is the original consumer for the purposes of Para 3.4(d)(ii).

From the pleadings and arguments raised by the learned counsel for the parties, the facts that emerge are, that one Shree Siddhballi Steel Ltd., 259, Patel Nagar, Nai Mandi, Muzaffarnagar applied for sanction of load of 5500 KV for establishing and running rolling mill for manufacture of ingot and T.P.A. Bar. Vide order dated 2.4.2009, Siddhballi steel was sanctioned a load emanating from sub station, Bhopa Road through an independent feeder to be known as Siddhballi feeder, the entire cost of which was to be borne by them (Adnnexure-1 to the writ petition). Pursuant to the aforesaid letter, M/s Siddhballi Steel Ltd. Deposited a sum of Rs.1,25,20,000/- and odd for installing an independent feeder. It appears that the petitioner for establishing a unit of induction furnace also applied for load of 3200 KVA from the said independent feeder which was sanctioned vide order dated 15.9.2009. Para 3.4 sub clause (d) of the Supply Code permits tapping from the independent feeder by other consumers having similar process only upon the condition that construction of separate feeder from the sub station is not possible on account of unavailability of corridor, right of way and bay at the respective sub station. On similar instance and conditions other similar processing units , namely, M/s Suresh Furnace Pvt. Ltd. And M/s V.V.A. Steels Pvt. Ltd. were also sanctioned

load from the same Siddhballi independent feeder. Annexures-2, 3 and 4 are the orders with regard to sanction of load from the Siddhballi Independent feeder to M/s Suresh Furnace Pvt. Ltd, the petitioner and M/s V.V.A. Steel Pvt. Ltd. .Respondent no.3 also applied for 2700 KVA load for running his unit of the similar process. As no separate feeder from the sub station was possible on account of non-availability of corridor, right of way, and bay at the respective sub station, the respondent deposited the requisite cost and charges and load was sanctioned from the same feeder vide order dated 5.9.2012. The petitioner objected to the sanction of the load to respondent no.3 through Siddhballi independent feeder on the ground that no consent has been taken from it as per sub clause (2) of clause(d) of Para 3.4 of the Supply Code. It also objected to the sanction of load from Siddhballi independent feeder on the ground that the quality of supply to his unit would be affected and the same is not technically feasible as per sub clause (iii) of clause (d) of Para 3.4 of the Electricity Code.

It is noteworthy that the other units ,namely, M/s ShreeSiddhballi Steel Ltd., M/s Suresh Furnace Pvt. Ltd. And M/s V.V.A Steel Pvt. Ltd. are not before us and are not parties in the present writ petition.

The main emphasis of the petitioner against the sanction of load to respondent No.3 is that supply through tapping from an independent feeder to other consumer is permissible only upon the conditions enumerated in sub clauses i,ii,iii and iv of clause (d) of Para 3.4 of the Supply Code. One of the condition is that the consent from the original owner has to be obtained by the prospective consumer before such tapping from such an independent feeder is allowed. Since no consent has been obtained from the petitioner, therefore, electricity supply to respondent no.3 through tapping from Siddhballi independent feeder is violative of Para 3.4 of the Code.

The aforesaid contention of the petitioner does not appeal to us. The petitioner unit itself is supplied electricity through tapping from Siddhballi independent feeder. There is no doubt that Siddhballi independent feeder was installed at the behest of M/s Shree Siddhballi Steel Ltd. The condition imposed was that they would bear the entire cost of the independent feeder. Their load was sanctioned first (2.4.2009). On the other hand petitioner's load was sanctioned on 15.9.2009 (Annexure-3). A careful reading of the sanction order dated 15.9.2009 in favour of the petitioner reveals that initially the

sanction of load was to be through another independent feeder to be installed at the cost of the petitioner. Subsequently, vide order dated 3.11.2009 the condition of installation of an independent feeder was revised and now the petitioner was to be given supply from Siddhballi independent feeder upon the condition that the petitioner would bear the cost construction of the electricity line from the T off point upto his premises.

It appears that during the time when Siddhballi independent feeder was under construction, the number of consumers, with similar processes, increased. The Divisional Engineer vide reports dated 15.9.2009 and 16.1.2010 (Annexure-5) proposed that rest of the consumers can be provided supply through the Siddhballi independent feeder by installing a 'Bay' on a 4 pole structure at a vantage point. From such a Bay, by running 4 Km. line towards the south M/s V.V.A.Steels can be provided connection. Similarly towards the north by running 5.5 Km. electric line from the 4 pole structure, two consumers namely M/s Suresh Furnaces and the petitioner can be supplied their respective load. The report further stated that the cost of the Bay and the cost of the electricity line will be borne by respective consumers.

From the documents filed in the writ petition, it appears that Annexure-1 which is the load sanction order dated 2.4.2009 in favour of M/s Siddhballi Steels and Annexure-3 is the load sanction order dated 15.9.2009 in favour of the petitioner provides for installation of an independent feeder at the cost of the consumers. The terms and conditions of load sanction order dated 15.9.2009 in favour of the petitioner was subsequently revised by the order dated 3.11.2009 and the petitioner's connection was to be given from the under-construction Siddhballi feeder through tapping of electricity line, ahead of the electricity line provided to M/s Suresh Furnaces, and further condition was, that the cost of laying down electricity line from the T off point and double metering will be borne by the petitioner. No other document has been filed along with the writ petition which could indicate that there was any condition to bear the cost of the independent feeder to any other consumer apart from M/s Shree Siddhballi Steels Pvt. Ltd. All the other consumers although were given connection from the independent feeder known as Siddhballi independent feeder but they were merely asked to bear the cost of running the electricity line from the aforesaid feeder. Upon the aforesaid instances and fact we were persuaded to believe that Siddhballi independent

feeder was installed at the instance of M/s Siddhbabli Steels Pvt. Ltd. For the purposes of Para 3.4 (d)(ii), M/s Siddhbabli Steels Pvt. Ltd. has to be held to be the original consumer. Further, none of the pleadings or the documents filed by the petitioner in this writ petition indicates that any of the other consumers, namely, M/s Suresh Furnaces Pvt. Ltd., the petitioner or M/s V.V.A. Steels Pvt. Ltd. had obtained any prior consent or permission from the original consumer, i.e., M/s Siddhbabli Steels Pvt. Ltd. The connection line to the unit of the petitioner appears to have been made through tapping the electricity line emanating from Siddhbabli independent feeder. Para 3.4 clause (d) (ii) of the Supply Code permits tapping of connection from the independent feeder to other consumers upon certain conditions, one of which is prior consent of the original consumer and secondly, by tapping, the quality of electricity supply is not affected. The load sanctioned to respondent no.3 from the same feeder and the same line that of the petitioner, by tapping cannot be faulted on the ground by respondent no.3 or the licensee did not take prior consent from the petitioner. As we have already held above that M/s Siddhbabli Steels is the original consumer from the Siddhbabli independent feeder, the objection, if any by it, has not been brought on record before us nor M/s Siddhbabli is a party in the proceeding, the objection raised by the petitioner with regard to sanction of load to respondent no.3 is, therefore, unjustified.

The reliance placed by the petitioner on the decision of a Division Bench of this Court in the case of **M/s Kesarwani Sheetalaya & others Vs. Purvanchal Vidyut Vitran Nigam Ltd. & others** in writ petition No.2309 of 2009 dated 9.10.2009 is also misplaced inasmuch as in the said case this Court held that the petitioners therein had taken consent from the original consumer and had also deposited proportionate cost of feeder and, therefore, they should also be treated at par with the original consumer and any further connection through tapping to other consumer without the consent of the petitioner would violate the condition no.2 of sub clause(d) of Para 3.4 of the Supply Code. The aforesaid case is clearly distinguishable upon the facts of the present case as enumerated above.

On the other hand section 43 of the Electricity Supply Act, 2003 casts an obligation upon the licensee to supply electricity within a period of one month after receipt of application requiring such supply. The respondent no.3 was sanctioned load of 2700 KVA vide order dated 5.9.2012 and, therefore,

under the facts and circumstances there being no other legal impediment is entitled to connection. According to respondent no.3 as well as the departmental authorities, the feasibility report is already in favour of the respondent that the electricity supply to his unit will not adversely affect the supply to other consumer such as the petitioner.

Upon due consideration of pleadings and arguments raised by the respective counsel for the parties and also due to the fact that the original consumer M/s Siddhballi Steels having raised no objection with regard to the connection to respondent, the petitioner who is the prospective consumer from the Siddhballi independent feeder through tapping has no justifiable reason to raise any objection with regard to sanction of load to the respondent no.3.

Upon the aforesaid facts and circumstances of the case, we decline to interfere in the matter , the writ petition being devoid of merit is dismissed accordingly.

Order Date :- 17.4.2013

VPC